

LEARNER WORKBOOK

FULL NAME & SURNAME	
ID NUMBER:	
NAME OF ASSESSOR	
DATE OF ASSESSMENT	
VENUE	

MODEL ANSWERS

	ACHIEVED	NOT ACHIEVED
KNOWLEDGE		
SKILLS		

Signature of learner

Signature of Assessor

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This material has been compiled based on the **UNIT STANDARD 244184 APPLY LEGAL ASPECTS IN A SECURITY ENVIRONMENT.**

The program has been accredited by SASSETA in the Republic of South Africa.

Material compiled by: Training Dynamics Africa

HOW THIS LEARNER WORKBOOK IS COMPILED

This learner workbook has been compiled for personnel to explain which legislation impacts on the operations and functions of the security sector. They will be able to understand how and when proportionality of force can and may be used. They will also be able to explain situations and indicate how they should be dealt with in line with legal prescripts.

1. Describe legislation pertaining to the security industry
2. Describe common law principles that relate to the security industry
3. Apply legal prescripts to the private security industry

You have to study the content and guidelines given in your learner reference guide to complete this workbook.

Remember that this completed workbook must be handed in as it will form part of your formative assessment and will play a role in awarding you the required 08 credits that are to be achieved upon completion of this module.

Write neatly and legibly and ensure that you do not simply copy the information contained in the learner reference guide into your workbook. Give your own opinion and ideas where applicable and write the answers in your own words to indicate your level of understanding and learning.

Good luck with the completion of this workbook.

LEARNING UNIT 1

Human rights

LEARNING OUTCOMES

A learning credited with this unit will be able to:

1. Confirm that the Constitution of South Africa is the supreme law of the Republic, especially in relation to South African Legislation
2. confirm that the Bill of Rights are contained in the Constitution of South Africa is the cornerstone of democracy from which all human rights are derived
3. Identify the basic human rights that citizens of South Africa have according to
4. sections 9, 10, 11, 12 and 14 of the Constitution of South Africa by relating them to their relevant application within other firearm-related legislation

LEARNER ACTIVITY 1 (page 15)

HUMAN RIGHTS: What do you understand by the concept “human rights” and what are the main aspects to consider when talking about the human rights of the people?

Since 1994 there was a shift in the total ethics and value system in South Africa. For example the police moved away from being a “force” to a “service”. Bodies like the Independent Complaints Directorate (ICD) were established to investigate complaints against the police. In the security environment the Private Security Industry Regulatory Authority (PSIRA) regulates the security industry. Human Rights abuses will be investigated by PSIRA. It is thus clear on how important PSIRA is in their functioning as the regulator of the private security industry, as private security companies and security

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 2 (page 15)**BILL OF RIGHTS:** What is the purpose of the Bill of Rights?

The purpose of the Bill of Rights is to protect the individual against abuses of the authority of the State (including the police) and, in some instances, imposes a duty on the State to provide citizens with certain social and economic rights. It acts as a set of checks and balances which protect citizens from the abuse of government power as well as imposing certain duties on government.

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 3 (page 15)

Give 5 (five) examples of rights contained in the Bill of Rights that are relevant to the security services.

- ♦ the rights to life (section 11)
- ♦ the right to equality and equality before the law (section 9)
- ♦ the rights to dignity (section 10)
- ♦ the right to freedom and security of the person (section 12)
- ♦ the right to privacy (section 14)
- ♦ the right to freedom of association (section 18) and movement (section 21)
- ♦ the right of access to the courts (section 34)
- ♦ the right to health care, food, water and social security (section 27)
- ♦ the right to a healthy environment (section 24)

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 4 (page 16)**Which Law in South Africa enjoys supremacy over all other legislation?****Section 2 of the Constitution: Supremacy of the Constitution**

This Constitution is the supreme law of the Republic; law or conduct inconsistent with it is invalid, and obligations imposed by it must be fulfilled.

The Constitution places an obligation on every security official to respect and protect the fundamental human rights of every person in South Africa.

The basic human rights principle in the Constitution is based on international law. This international law can be found in international conventions and treaties (these are documents that look like contracts and that are signed by the different countries, including the South African Government). It is therefore; also important for security officials to know the basic international human rights standards for law enforcement.

The question that most officials ask is -

- ♦ do police and security officials have any rights in terms of the Constitution?
- ♦ Do "criminals", as a result of the Constitution, have more rights now?

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 5**Multiple choice questions. Choose one or more of the following:**

- 1. In terms of the Constitution, everyone has the following rights:**
 - [A] The right to acquire dignity and respect
 - [B] The right to freedom and security of the person
 - [C] The right to privacy**
 - [D] The right to remain silent
 - [E] The right to equal protection and indemnity when using a firearm

- 2. Which of the following have more rights in terms of the Constitution?**
 - [A] Police and Security Officials
 - [B] Convicted criminals
 - [C] Permanent residents of South Africa
 - [D] Immigrants in South Africa
 - [E] All of the above**

- 3. How do the Police limit the rights of people in terms of the Criminal Procedure Act?**
 - [A] Arrest
 - [B] Detention
 - [C] Search and seizure
 - [D] Murder
 - [E] All of the above**

- 4. There may not unfairly be discriminated directly or indirectly against anyone on one or more grounds, including:**
 - [A] Race and Gender
 - [B] Marital status or sexual orientation
 - [C] Ethnic or social origin
 - [D] Beliefs or Culture
 - [E] All of the above**

- 5. Everyone has the right to freedom and security of the person, which includes the right-**
 - [A] Not to be deprived of freedom
 - [B] Not to be detained without trial**
 - [C] Not to be tortured without good reason
 - [D] Not to be detained before seeking legal aid
 - [E] All of the above

6. Which of the following relates to the Right to Freedom of Movement and residence:
- [A] Every person in South Africa as a right to freedom of movement
 - [B] Everyone has the right to leave the Republic of South Africa
 - [C] Every citizen has the right to reside anywhere in South Africa
 - [D] Every citizen has the right to a passport
 - [E] **All of the above**
7. Which of the following relates to the Right to Housing:
- [A] **Everyone has the right to have access to adequate housing**
 - [B] The state must take reasonable measures to achieve the progressive realization of this right
 - [C] No one may have their home demolished without an Order of Court
 - [D] A person may only be evicted from their home when in arrears with payments
 - [E] Only High Court Legislation may permit arbitrary evictions
8. Which of the following relates to the Rights of Children:
- [A] Every child has the right to earn an income from the age of 13
 - [B] **Every child has the right to basic nutrition, shelter, health care services etc.**
 - [C] Every child has the right to be abused or neglected
 - [D] Every child has the right to family or parental care
 - [E] All of the above
9. Arrested, detained and accused persons have the right to:
- [A] **Remain silent and to be informed of the consequences if not remaining silent**
 - [B] **Not to be compelled to make any confessions or admissions that could be used in evidence against him**
 - [C] To be brought before a Court of Law within 72 hours
 - [D] To be released from detention immediately after the first court appearance
 - [E] **To be released from detention if the interests of justice permit subject to reasonable conditions**
10. Everyone who is detained has the right :
- [A] to be detained at his choice of location
 - [B] **to have a legal practitioner assigned to the detainee by the State at the State's expense**
 - [C] to communicate with and be visited by that person's doctor or religious counselor
 - [D] **to challenge the lawfulness of the detention in person before a court**
 - [E] **to be informed of the reasons for being detained**

Requirements achieved	YES		NO	
Comments in support of decision				

STUDY UNIT 4

PSIRA Statutory code of conduct

LEARNING OUTCOMES

A learning credited with this unit will be able to:

1. Explain the security officers obligation towards PSIRA, clients, general public and the private security industry
2. Explain the purpose of the Code of Conduct published in terms of the PSIRA Act 56 of 2001
3. Know about the existence and implications of the Code of Conduct published in terms of the PSIRA Act 56 of 2001
4. Know under which conditions he would be convicted of improper conduct according to Section 2 of the Code of Conduct as published in terms of the PSIRA Act 56 of 2001
5. Explain the requirements that must be met by the security businesses and security officers with regard to the carrying of firearms in terms of Regulation 13 (5) of the PSIRA Act 56 of 2001

LEARNER ACTIVITY 1 (page 33)

The purpose of this Code is to provide binding rules that all security service providers and employers of in-house security officers must obey in order to:

- (a) promote, achieve and maintain a trustworthy and professional private security industry which acts in terms of the law applicable to the members of the industry;
- (b) promote, achieve and maintain compliance by security service providers with a set of minimum standards of conduct which is necessary to realize the objects of the Authority;
- (c) promote, achieve and maintain compliance by security service providers with their obligations towards the State, the Authority, consumers of security services, the public, and the private security industry in general;
- (d) ensure the payment of the applicable minimum wages and compliance with standards aimed at preventing exploitation or abuse of employees in the private security industry, including employees used to protect or safeguard merely the employer's own property or other interests, or persons or property on the premises of, or under the control of the employer; and provide for matters incidental to the above

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 2 (page 33)**This Code of Conduct is applicable to:**

- (a) all security service providers, whether registered with the Authority or not, in practicing the occupation of security service provider, in rendering a security service or carrying on business in the rendering of a security service, or in performing any other act or function which is subject to the Act;
- (b) every person using his or her own employees to protect or safeguard merely his or her own property or other interests, or persons or property on his or her premises or under his or her control, to the extent provided for in the Act and this Code;
- (c) every category or class of persons as contemplated in the Act, taking into account the nature of the relevant provisions of this Code as well as the juristic nature of such persons; and
- (d) the relevant conduct of a security service provider at any place, irrespective of whether the conduct was committed within or outside the Republic.

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 3 (page 35)**Name 5 (five) general obligations that the security service provider has towards PSIRA**

1. A security service provider must, within his or her ability, render all reasonable assistance and co-operation to the members and employees of the Security Services to enable them to perform any function which they may lawfully perform.
2. A security service provider may not interfere with, resist, obstruct, hinder or delay a member or an employee of a Security Service or an organ of State in the performance of a function which such person may lawfully perform.
3. A security service provider must, without undue delay, furnish all the information and documentation to a member or employee of a Security Service or an organ of State which such member or employee may lawfully require.
4. A security service provider may not unjustly cast reflection upon the honesty, professional reputation, skill, knowledge, service or qualifications of any member of the Security Services.
5. A security service provider must be honest in all his or her dealings with a Security Service and with any organ of State.
6. A security service provider may not, whether directly or indirectly, request or use a member or former member of a Security Service or any employee or former employee of a Security Service or an organ of State, to obtain any information, document, object or assistance for the purposes of rendering a security service, where such member, former member, employee or former employee, will contravene a law or the conditions of his or her service, as the case may be, in providing such information, document, object or assistance.
7. A security service provider must, where the importance, nature or circumstances of a security service, or the nature or extent of the risks guarded against, or any other relevant fact, reasonably requires such a step, officially provide a responsible member of the Service with all relevant information regarding the rendering or proposed rendering of the security service, and maintain contact with such a member if this is reasonable and prudent

10. (a) A security business must keep full and proper financial records, available for inspection by the Authority, for a period of at least 3 years from the date of any transaction, of all income and expenditure of the security business on account of the rendering of any security service by it.
- (b) The provisions of regulation 10(2), (3), (4), (5) and (6) of the Private Security Industry Regulations, 2002 are, with the necessary changes, applicable to the obligation contemplated in paragraph (a).

Requirements achieved	YES		NO	
Comments in support of decision				

LEARNER ACTIVITY 4 (page 35)**GENERAL OBLIGATIONS TOWARDS THE PUBLIC AND THE PRIVATE AND THE PRIVATE SECURITY INDUSTRY****A security service provider must at all times act in a manner which:**

- (1) A security service provider must at all times act in a manner which -
- (a) does not threaten or harm the public or national interest;
 - (b) promotes the stability of the private security industry;
 - (c) promotes good discipline in the private security industry;
 - (d) maintains and promotes the status of the occupation of security service provider; and
 - (e) promotes efficiency in and responsibility with regard to the rendering of security services.

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 5 (page 38)**GENERAL OBLIGATIONS TOWARDS CLIENTS AND ISSUES RELATED THERETO**

A security service provider must, whenever a client reasonably needs information to make an informed decision, furnish sufficient and correct information which is within the knowledge of the security service provider, to the client, including information concerning:

- (2) A security service provider must, whenever a client reasonably needs information to make an informed decision or to exercise or protect a right or comply with a duty, furnish sufficient and correct information which is or should reasonably be within the knowledge of the security service provider, to the client, including such information concerning the following:
- (a) the risks to which the client is exposed and the client's needs in respect of a particular security service;
 - (b) the client's needs in respect of the use of equipment, firearms and weapons in the rendering of a security service to the client;
 - (c) the security service that he, she or any other security service provider that will be used to render the security service, is entitled, able and qualified to render;
 - (d) the correct and full remuneration, reward, fee or benefit payable by the client in respect of the relevant security service;
 - (e) the registration status as security service provider, training level and relevant conditions of service of the security officers used or to be used in rendering the security service;
 - (f) the management, control and supervision of the rendering of the security service as well as reasonable contact particulars of security officers performing such functions;
 - (g) the procedures, firearms, ammunition, weapons and equipment used or to be used by security officers in the rendering of the security service;
 - (h) any contractor or sub-contractor used or to be used in connection with the rendering of the security service, as well as the control and supervision of such contractor or sub-contractor;
 - (i) any matter on which the security service provider is by law obliged to furnish information to the client; and
 - (j) any matter on which the client lawfully and reasonably requests information.

LEARNER ACTIVITY 6 (page 42)**PROVISIONS REGARDING CERTAIN CATEGORIES AND CLASSES OF SECURITY SERVICE PROVIDERS AND DIFFERENT TYPES OF SECURITY SERVICES**

Name 2 (two) reasonable steps a security service provider must take before a security officer in his employ is made available to render a security service to any person

- ♦ has been properly informed about the nature and scope of his or her functions and duties as well as his or her legal powers in this regard;
- ♦ is properly managed, controlled and supervised;

Requirements achieved	YES		NO	
Comments in support of decision				

LEARNER ACTIVITY 7 (page 45)**PRIVATE INVESTIGATORS**

A security service provider performing the function of a private investigator may not perform any act which interferes with a Security Service or an organ of State in performing any function that it may lawfully perform.

Name 3 (three) other points that is also applicable to the performance of functions of private investigators.

- (b) may not advise, assist or incite a client or any other person to commit an offence, a delict, breach of contract or any other type of unlawful act;
- (c) may not undertake or assist in the entrapment of any person for the purposes of obtaining evidence of an offence, a delict or breach of contract unless such conduct is permitted in terms of law and any official permission that may be legally required, has been obtained;
- (d) may not conceal facts regarding the commission of an offence from a Security Service or any organ of State, or agree with a client to conceal such facts from a Security Service or any organ of State;
- (e) may not employ a corrupt, illegal or unlawful method or technique, or use unlawful threats, intimidation, misrepresentation or false pretences, to gather information, gain access to premises or secure the assistance or co-operation of any person;
- (f) may not possess or use a monitoring device or any other equipment for the purposes of surveillance, counter-surveillance or any other aspect of an investigation where such possession or use is in conflict with any legal provision or any provision of this Code or constitutes an unlawful act against any person;
- (g) may not possess or use a specialised device used for the opening, closing or engaging of locking mechanisms, or possess or use any specialised device used to reproduce or duplicate keys, or possess any key code or key, unless he or she is able to provide a justifiable reason to the Authority or the Service, as the case may be, for such possession or use;
- (h) may not possess, carry or use any document or object for the purposes of providing a false or incorrect indication of his or her identity, status, powers or functions, unless he or she is able to

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 8 (page 47)**LOCKSMITHS**

What is a security service provider, performing the functions of a locksmith, legally entitled to do with respect to a locking mechanism of any nature?

must perform all his or her functions in a trustworthy and competent manner;

- (b) must take all reasonable steps necessary to eliminate or minimize any risk of harm to a client as a result of any service rendered by him or her to the client;
- (c) may only open, close or engage a locking mechanism of any nature, or reproduce, duplicate, manufacture or provide a key, start any vehicle or cause a vehicle to be capable of movement by unlocking a locking mechanism, if the person requesting such action furnishes written proof of his or her identity with sufficient contact particulars as well as the authority to make the request, and, if relevant in the circumstances, the consent of any other person required by law in respect of the requested action, has been furnished;
- (d) must make reasonable enquiries, if reasonably necessary in the circumstances, to verify the proof and information contemplated in paragraph (c);
- (e) must keep a proper record of the information contemplated in paragraph (c) for a period of at least three years in a secure place;
- (f) may not perform any act, unless duly authorized thereto, that compromises or may probably compromise the security of a client or of any other person, including an act which affects the security and efficiency of any locking mechanism, key, vehicle, door, gate or security system;
- (g) may not duplicate, reproduce, manufacture or possess any key or key code, or modify a key blank, unless this is done for lawful purposes;
- (h) must exercise effective and reasonable control over a specialized device, belonging to or utilized by him or her, which is used to open, close or engage locking mechanisms;
- (i) must exercise effective and reasonable control over a specialized device, belonging to or utilized by him or her, to reproduce or duplicate keys;
- (j) may only provide a key code, ready cut keys or a specialized device contemplated in paragraph (h) and (i), belonging to or utilized by him or her, to a person who is entitled to receive and possess it in terms of a ground recognized by law;

- (k) may only provide information or training or impart skills regarding the opening, closing or engaging of locking mechanisms of any nature to a person that is registered as a security service provider, enrolled to receive training at a security training establishment, or entitled to receive such information, training or skills in terms of some other ground recognized by law; and
- (l) must acquire any key or key code, or any specialised device contemplated in paragraph (h) and (i), in a lawful manner

Requirements achieved	YES		NO	
Comments in support of decision				

LEARNER ACTIVITY 9 (page 49)**SECURITY SERVICE PROVIDERS INSTALLING, SERVICING OR REPAIRING SECURITY EQUIPMENT OR PERFORMING CERTAIN FUNCTIONS REGARDING MONITORING DEVICES**

Discuss the duties and performance of a security service provider installing, servicing and repairing security equipment

security service provider installing, servicing or repairing security equipment

- (a) must perform all his or her functions in a reasonable, trustworthy and competent manner;
- (b) may not install, service or repair any security equipment if the client's possession or use thereof, is or will be unlawful;
- (c) must make reasonable enquiries, if reasonably necessary in the circumstances, to verify the lawfulness of a client's possession and use of security equipment as contemplated in paragraph (b);
- (d) may not install, service, repair or modify any security equipment if he or she would act unlawfully in doing so;
- (e) may only install security equipment if it has been acquired in a lawful manner by him or her or by the client, as the case may be;
- (f) may not install security equipment if he or she knows or should reasonably know that it is faulty, untrustworthy or defective, or that it poses an unreasonable risk to the legitimate interests of the client or any other person;
- (g) must, when he or she installs security equipment, provide the client with all information reasonably necessary in regard to the care of and the effective use of the security equipment, unless the client is already in possession of such information;

- (h) must take all reasonable steps necessary in the circumstances to eliminate or minimize any risk of harm to a client as a result of the service rendered by him or her;
- (i) may not perform any act, unless duly authorized thereto, that compromises or may probably compromise the security of a client or any other person entitled to security;
- (j) may only provide information or training or impart skills concerning the operation, installation, repair or servicing of security equipment to a person who is registered as a security service provider, enrolled to receive training at a security training establishment, or is otherwise entitled to have access to such information, training or skills;
- (k) may not make a misrepresentation to a client regarding any security equipment provided to the client by him or her; and
- (l) must without undue delay officially report to the Service the unlawful possession or use of security equipment by any person that he or she is aware of :

A security service provider manufacturing, importing, distributing, advertising, possessing or using a monitoring device:

- (a) may only manufacture, import, distribute, advertise, possess or use a monitoring device in compliance with all applicable legal provisions;
- (b) must keep proper records as may be prescribed in terms of the Act;
- (c) must submit information to the Authority on all transactions regarding monitoring devices as may be prescribed in terms of the Act;
- (d) may not supply a monitoring device to any person if the identity and sufficient contact particulars of such person as well as the identity and sufficient contact particulars of the end user thereof are not confirmed in writing to him or her before he or she supplies such a monitoring device;
- (e) may not supply a monitoring device to any person if such person's possession or use thereof and the possession or use thereof by the end user, is or will be unlawful
- (f) must make reasonable enquiries, if reasonably necessary in the circumstances, to verify the lawfulness of a person's possession and use of a monitoring device as contemplated in paragraph (e), as well as the accuracy of any relevant information provided by the client to him or her; and
- (g) must comply, with the necessary changes, with the provisions of regulation 15(a), (b), (c), (d), (e), (f), (g), (h), (i), (j) and (k), and regulation 17(d) and (e).

LEARNER ACTIVITY 10 (page 53)**PROVISIONS REGARDING IMPROPER CONDUCT, THE ENFORCEMENT OF THE CODE AND OTHER MATTERS RELATING THERETO:**

A security service provider who has been found guilty of improper conduct is subject to certain penalties. Briefly name 3 (three) of these penalties:

- ♦ a warning or a reprimand;
- ♦ suspension of registration as security service provider for a period not exceeding 6 months;
- ♦ withdrawal of registration as security service provider;
- ♦ a fine not exceeding R10 000, which is payable to the Authority;
- ♦ publication of appropriate details of the conviction of improper conduct and any penalty imposed; or
- ♦ any combination of the above.

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 11 (page 55)**PROCEDURES**

Where can you find the procedures for the enforcement of the Code of Conduct by PSIRA?

- (1) The procedures for the enforcement of this Code by the Authority are contained in the Improper Conduct Enquiries Regulations.
- (2) The procedures contained in the Improper Conduct Enquiries Regulations are incorporated into this Code.

Requirements achieved	YES		NO	
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Comments in support of decision

SELF-ASSESSMENT

The learner must make use of the following self-evaluation checklist to rate himself against the learning outcomes of this particular training module in establishing the level of mastery of the information.

1. Not able to comply
2. Reasonable compliance (Not acceptable for final evaluation)
3. Able to comply fully

LEARNING OUTCOMES		1	2	3
1	Explain the security officers obligation towards the Authority, clients, general public and the private security industry			
2	Explain the purpose of the Code of Conduct published in terms of the PSIRA Act 56 of 2001			
3	Know about the existence and implications of the Code of Conduct published in terms of the PSIRA Act 56 of 2001			
4	Know under which conditions he would be convicted of improper conduct according to Section 2 of the Code of Conduct as published in terms of the PSIRA Act 56 of 2001			
5	Explain the requirements that must be met by security businesses and security officers with regard to the carrying of firearms in terms of Regulation 13 (5) of the PSIRA Act 56 of 2001			

Evidence Collector Signature

Date

Security Officer Signature

Date

LEARNING UNIT 3

Criminal Law

LEARNING OUTCOMES

A learning credited with this unit will be able to:

1. Known the requirements of a crime
2. Identify a crime by applying the requirements of a crime
3. Define the term private defense by relating it to its contextual application as grounds of justification, which will render a conduct that would normally be construed as unlawful to be lawful according to the common law principles
4. Explain the conditions that an attack on any human being must comply with according to the common law principles before a defensive action will be considered lawful
5. Explain the conditions that a defensive action must comply with in the event of an illegal attack on any human being by considering the principles of the reasonable man, the proportional use of force and the justifiability of the defensive action according to accepted common law principles
6. Define the term “necessity” by relating it to its contextual application as grounds of justification, which will render a conduct that would normally be construed as unlawful to be lawful according to the common law principles
7. Explain the conditions that an Act of necessity must comply with according to the common law principles before it will be considered lawful

LEARNER ACTIVITY 1**Multiple choice questions. Choose one or more of the following:****THE REQUIREMENTS OF A CRIME****THE CONCEPT OF LEGALITY**

1. In determining whether a person is criminally liable, the first question to be asked is:
 - [A] Whether the person has previously been arrested for a criminal offence
 - [B] Whether the type of conduct allegedly committed by him is recognized by the law as a crime**
 - [C] Whether the type of conduct allegedly committed by him is of civil nature
 - [D] Whether the type of conduct allegedly committed by him is a contravention of a legal rule
 - [E] All of the above

2. What is The Principle of Legality also known as?
 - [A] Ignorantia facti excusat
 - [B] In statu quo
 - [C] Modus operandi
 - [D] Ita lex scripta est
 - [E] Nullum crimen sine lege**

ACT OR OMISSION

3. The term 'act' as used in criminal law refers to:
 - [A] Criminal thoughts and decisions
 - [B] A voluntary human act or omission**
 - [C] Type of conduct by a human being
 - [D] Presentation of a situation
 - [E] All of the above

4. When is an 'act' punishable in criminal law?
 - [A] When the act cannot be controlled by will or intellect
 - [B] When the act can be controlled by will or intellect
 - [C] When the act is voluntary**
 - [D] When the act is not voluntary

UNLAWFULNESS

5. Which of the following acts are unlawful?

- [A] Attacking another human being to help someone
- [B] To assault someone who is looking for trouble
- [C] The intentional killing of another human being**
- [D] The killing of another human being in self-defense
- [E] Driving over the speed limit in case of emergency

PRIVATE DEFENCE

6. A person acts in private defense if:

- [A] He uses force to repel an unlawful attack which already commenced**
- [B] He feels threatened in a certain situation and needs to protect his own interest
- [C] He attacks a policeman in order to avoid being arrested
- [D] He escapes from custody in order to regain his freedom
- [E] He dislikes a certain person and therefore assaults him

7. What are the requirements of an attack in order to make private defense

8. lawful?

- [A] The attack must be unlawful**
- [B] The attack must be against interests which ought to be protected**
- [C] The attack must be threatening but not yet completed**
- [D] The attack must be directed at the defender
- [E] All of the above

8. What are the requirements of an act of defense to make same lawful?

- [A] When a person thinks he is in danger if another person is under the influence of
- [B] alcohol or drugs
- [C] The act of defense must be directed towards the attackers friend in order to scare him off
- [D] The act of defense must be as harmful as possible in order to kill the attacker
- [E] The attacked person must be aware of the fact he is acting in private defense
- [F] The act of defense must be directed towards the attacker and must be necessary**

NECESSITY

9. A person acts out of necessity, and his conduct is therefore lawful if:

- [A] he acts in the protection of his own or somebody else's life**
- [B] he suspects that a person might attack somebody else
- [C] he heard stories of the person and sees it necessary to teach him a lesson
- [D] he acts in a way to prevent danger
- [E] He acts in a way to disarm his attacker and in the process broke the attacker's arm

10. When executing an arrest, when may force be used in order to effect same?

- [A] When the person to be arrested is under the influence of alcohol and on the verge of passing out
- [B] When the person to be arrested is kicking at the policeman
- [C] When the person to be arrested is injured and cannot walk with the policeman
- [D] When the person to be arrested is resisting arrest
- [E] All of the above

11. Which of the following relates to the term 'necessity':

- [A] When the act stems from human conduct
- [B] When the act stems from chance circumstances**
- [C] When an attack is directed against an unlawful attack
- [D] When the attack is directed against the interest of an innocent third party
- [E] When the attack takes place in the spirit of the moment in order to protect your property
- [F]

Requirements achieved	YES	NO
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Comments in support of decision

SELF-ASSESSMENT

The learner must make use of the following self-evaluation checklist to rate himself against the learning outcomes of this particular training module in establishing the level of mastery of the information.

1. Not able to comply
2. Reasonable compliance (Not acceptable for final evaluation)
3. Able to comply fully

LEARNING OUTCOMES		1	2	3
1	Known the requirements of a crime			
2	Identify a crime by applying the requirements of a crime			
3	Define the term private defense by relating it to its contextual application as grounds of justification, which will render a conduct that would normally be construed as unlawful to be lawful according to the common law principles			
4	Explain the conditions that an attack on any human being must comply with according to the common law principles before a defensive action will be considered lawful			
5	Explain the conditions that a defensive action must comply with in the event of an illegal attack on any human being by considering the principles of the reasonable man, the proportional use of force and the justifiability of the defensive action according to accepted common law principles			
6	Define the term "necessity" by relating it to its contextual application as grounds of justification, which will render a conduct that would normally be construed as unlawful to be lawful according to the common law principles			
7	Explain the conditions that an Act of necessity must comply with according to the common law principles before it will be considered lawful			

Evidence Collector Signature

Date

Security Officer Signature

Date

LEARNING UNIT 4

Specific crimes

LEARNING OUTCOMES

A learning credited with this unit will be able to:

1. Interpret the meanings of the various definitions of first schedule offences correctly, by interrelating them with the relevant sections of the Criminal Procedure Act that deal with arrest and the use of force in order to affect the arrest, searching and seizure of articles

LEARNER ACTIVITY 1 (page 79)

Name 3 (three) crimes that can be committed against the State:

High treason
Sedition
Public violence

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 2 (page 79)**Explain in your own words the meaning of “High Treason”**

High treason consists in any act or omission within or outside the borders of the Republic of South Africa by a person owing allegiance to the Republic, with the intention unlawfully of overthrowing, coercing or endangering the existence, independence or safety of the Republic.

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 3 (page 79)**Who can be a perpetrator of high treason?**

Only **a person owing allegiance to the Republic of South Africa** can be guilty of high treason (*Tsotsobe* 1983 (1) SA 856 (A); *Magxwa-lisa* 1984 (2) SA 314 (N)).

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 4(page 82)

Explain in your own words the meaning of “Corruption”

At the outset it is advisable to differentiate between the active and the passive forms of the offence. (this terminology is not used in the Act; it is ours). The active form refers to the **giving or offering** of a benefit to somebody such as an official or a representative. The passive form refers to the **receiving** by the latter person of the benefit or offer. Both types of conduct constitute corruption.

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 5 (page 83)

Give one word for the following definition:

“The wrongful and intentional acquisition of a benefit, from some other person, by applying pressure to that person which induces him to part with the benefit”

Extortion

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 6 (page 85)

A Person causes the death of another person unlawfully because of negligence. Is this seen as:

- [A] Murder
[B] Culpable Homicide

Culpable homicide consists in The unlawful, negligent causing of the death of another human being.

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 7 (page 86)**A person commits assault if:**

[A] He unlawfully and _____ applies force,
 _____ or _____, to the person of another or;

[B] Inspires a belief in another person that _____ is
 immediately to be applied to him.

A person commits assault if he unlawfully and **intentionally**

- ♦ applies force, **directly or indirectly**, to the person of another, or
- ♦ inspires a belief in another person that **force** is immediately to be applied to him.

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 8 (page 89)

8. What are the 4 (four) basic requirements that must be complied with before a person can be convicted of theft?

- [A] an act of _____
- [B] in respect of _____
- [C] which takes place _____ and
- [D] _____

- ♦ an act of **appropriation**
- ♦ in respect of **a certain type of property** (or thing)
- ♦ which takes place **unlawfully** and
- ♦ **intentionally** (more particularly, with the intention to appropriate)

Requirements achieved	YES		NO	
Comments in support of decision				

LEARNER ACTIVITY 9**Multiple choice questions. Choose one or more of the following:**

1. Indicate the different forms of theft:

- [A] Unlawful removal of property**
- [B] Extortion
- [C] Perjury
- [D] Embezzlement**
- [E] Corruption

2. For property to be capable of being stolen it must be:

- [A] Movable property**
- [B] Immovable property
- [C] Property that does not belong to you or anyone else
- [D] Your own property which is in the lawful possession of someone else
- [E] Personal property repossessed by yourself

3. When an theft occurs by means of violence it is called

- [A] Assault
- [B] Robbery**
- [C] Culpable homicide
- [D] Extortion
- [E] Bribery

4. When you knowingly receive stolen property, you are making yourself guilty of an offence and can be found guilty of being:

- [A] An accomplice**
- [B] An accessory after the fact
- [C] A perpetrator
- [D] A fraudster
- [E] An extortionist

MALICIOUS INJURY TO PROPERTY

5. Malicious injury to immovable property:

- [A] Theft
- [B] Arson**
- [C] Housebreaking
- [D] Robbery
- [E] Sedition

6. What is considered as “housebreaking”?

- [A] The removal of burglar bars to gain entry to the property
- [B] Entering through a door left open by the occupants
- [C] Illegal trespassing on your property
- [D] Entering the property upon invitation of the occupants**
- [E] Occupants gaining access to the house through a window after being locked out

Requirements achieved	YES	NO
Comments in support of decision		

SELF-ASSESSMENT

The learner must make use of the following self-evaluation checklist to rate himself against the learning outcomes of this particular training module in establishing the level of mastery of the information.

1. Not able to comply
2. Reasonable compliance (Not acceptable for final evaluation)
3. Able to comply fully

LEARNING OUTCOMES		1	2	3
1	Interpret the meanings of the various definitions of first schedule offences correctly, by interrelating them with the relevant sections of the Criminal Procedure Act that deal with arrest and the use of force in order to affect the arrest, searching and seizure of articles			

Evidence Collector Signature

Date

Security Officer Signature

Date

LEARNING UNIT 5

Effecting and arrest

LEARNING OUTCOMES

A learning credited with this unit will be able to:

1. Apply the human rights of citizens of the country, and their limitations, in their viable contexts within the Criminal Procedure Act 51 of 1977
2. Explain how to apply the provisions of section 39 of the Criminal Procedure Act 51 of 1977, which explains the manner in which an arrest should be executed
3. Explain how to apply the provisions of section 49 of the Criminal Procedure Act 51 of 1977, which deals with the use of force, including lethal force and the use of a firearm when executing a lawful arrest
4. Explain how to handle a lawfully arrested person correctly, in accordance with the requirements of Section 50 of the Criminal Procedures Act 51 of 1977 and Section 35 of the South African Constitution
5. Explain under which conditions the security officer must assist a police official in effecting an arrest according to the Criminal Procedures Act 51 of 1977

LEARNER ACTIVITY 1(page 101)

The Constitution guarantees my right to _____, freedom of _____, speech and _____ etc. as long as my _____ do not infringe on the _____ of another individual or _____. If someone _____ on my rights, I can demand the police to _____. If there is not sufficient time to notify the police, I can, within the _____ of the Law, act to _____ myself against the _____ who _____ my life or my _____.

The Constitution guarantees my right to life, freedom of movement, speech, association etc. as long as my rights do not infringe on the rights of another individual or the State. If someone infringed on my rights, I can demand the police to intervene. If there is not sufficient time to notify the police, I can sometimes, within the limits of the law, act to defend myself against the perpetrator who endangers my life or my property.

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 2**Multiple choice questions. Choose one or more of the following:**

1. **When can a lawful arrest be executed in accordance with the Criminal Procedures Act?**
 - [A] **If a person trespasses on another persons property other than his own**
 - [B] If a person trespasses on his own property
 - [C] If a person trespasses on the property that he has been appointed to safeguard by the owner of the property
 - [D] If a person trespasses on another persons property other than his own and maliciously damages the property
 - [E] All of the above

2. **A private person has the right to arrest someone who he suspects committed a First Schedule offense. Which of the following is regarded as First Schedule Offenses:**
 - [A] Assault
 - [B] Crimen injuria
 - [C] Rape
 - [D] Murder
 - [E] **All of the above**

3. **Arrest infringes certain rights of the accused which are protected in the Bill of Rights in the Constitution. These rights are:**
 - [A] A right not to be discriminated against
 - [B] A right not to be deprived of freedom
 - [C] A right to privacy
 - [D] A right to human dignity
 - [E] **All of the above**

4. **Section 47 of the Criminal Procedure Act, concerning the arrest of another**
5. **person, states that any person, when called upon to do so by a police official, must assist them in the arrest. This is applicable to:**
 - [A] **Any person (especially citizens in this country) who is 16 years of age and older**
 - [B] Only males of 18 years and older
 - [C] Both males and females of adult age
 - [D] Males of 16 and older
 - [E] All of the above

5. The law regarding the arrest of a person relates to the following:

- [A] The purpose of an arrest is to bring persons suspected of having committed offences before a court for trial**
- [B] Where an arrest is called for, no force may be used by a private citizen in order to carry out the arrest
- [C] A suspect may be shot should he flee the scene of an accident
- [D] A Where force is necessary, only the least degree of force may be used in order to carry out the arrest**
- [E] All of the above

6. When may force be used during an attempted arrest?

- [A] When the suspect attempts to flee**
- [B] When the suspect is under the age of 16
- [C] When the suspect is resisting the arrest
- [D] When the suspect is stronger and bigger than the arrestor
- [E] Force may never be used

7. When a citizen refuses to assist a police official with an arrest, he can be imprisoned or be given a fine. What reasons will be accepted by a court in excusing a person from assisting the police official requesting assistance?

- [A] When the person fears for his own safety
- [B] When the person is not a citizen of this country
- [C] When the person is physically disabled in some way
- [D] When the person did not understand the language of the police official**
- [E] All of the above

Requirements achieved	YES	NO
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Comments in support of decision

LEARNER ACTIVITY 3

**** TRUE OR FALSE:** Please mark the correct answer with a right mark to indicate the correct answer.

Nr.	Statement	True 	False
1.	The decision to perform an arrest must be based on objective criteria and the arrester must be certain that he can justify his decision to perform an arrest.		
2.	You are the first person to arrive at a murder scene. The victim is lying on the ground covered in blood. A person is bending over the victim with a knife in his hand. Although you have not seen the person actually stabbing the victim, you are allowed to arrest him and the arrest will be deemed lawful.		
3.	Any police official may call upon any person over the age of 13 to assist him in arresting a person.		
4.	Police officials may shoot at their suspect should the suspect be running away from them after being caught housebreaking.		
5.	The only way to bring a suspect before a court of trial, is to arrest him.		
6.	An arrest may be seen as a form of punishment of a suspect.		

Requirements achieved	YES	NO	
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Comments in support of decision

SELF-ASSESSMENT

The learner must make use of the following self-evaluation checklist to rate himself against the learning outcomes of this particular training module in establishing the level of mastery of the information.

1. Not able to comply
2. Reasonable compliance (Not acceptable for final evaluation)
3. Able to comply fully

LEARNING OUTCOMES		1	2	3
1	Apply the human rights of citizens of the country, and their limitations, in their viable contexts within the Criminal Procedure Act 51 of 1977			
2	Explain how to apply the provisions of section 39 of the Criminal Procedure Act 51 of 1977, which explains the manner in which an arrest should be executed			
3	Explain how to apply the provisions of section 49 of the Criminal Procedure Act 51 of 1977, which deals with the use of force, including lethal force and the use of a firearm when executing a lawful arrest			
4	Explain how to handle a lawfully arrested person correctly, in accordance with the requirements of Section 50 of the Criminal Procedures Act 51 of 1977 and Section 35 of the South African Constitution			
5	Explain under which conditions the security officer must assist a police official in effecting an arrest according to the Criminal Procedures Act 51 of 1977			

Evidence Collector Signature

Date

Security Officer Signature

Date

LEARNING UNIT 6

The Liquor Act

LEARNING OUTCOMES

A learning credited with this unit will be able to:

1. Know the role of the security officer during the Liquor Act as contemplated in the Liquor Act
2. Explain the functions of an inspector as contemplated in the Liquor Act
3. Know the prohibitions to supply liquor to a minor

LEARNER ACTIVITY 1**Multiple choice questions. Choose one or more of the following:****PURPOSE OF THE ACT**

1. What is the purpose of the Liquor Act?

- [A] To establish norms & standards to maintain economic unity in the liquor industry**
- [B] To ensure that the government benefits from the sale of liquor in
- [C] To assist the government, minors and adults have easy access to liquor
- [D] To provide for measures to promote cooperative government in the area of liquor regulations
- [E] All of the above

PROHIBITIONS TO SUPPLY LIQUOR OR ETHYLATED SPIRITS TO A MINOR

2. In terms of Section 10 of this Act:

- [A] A person may not sell or supply liquor to a minor**
- [B] A minor may only consume alcohol in the presence of the parents
- [C] A minor may be forced to produce an identity document when purchasing alcohol
- [D] A minor has the right to freedom and may not be prohibited to purchase alcohol
- [E] A minor may not make a false claim about age in order to induce a person to sell

FUNCTIONS OF INSPECTORS

3. A liquor inspector may:

- [A] investigate complaints submitted to the inspector in the prescribed manner**
- [B] Monitor and enforce compliance of the Liquor Act**
- [C] Supply liquor in small quantities to minors
- [D] Question any person at the premises where an inspection is conducted
- [E] All of the above

ROLE OF SECURITY OFFICERS

4. Where may alcohol be sold, served or consumed?

- [A] In licensed areas of hotels**
- [B] In the privacy of your own house
- [C] Outside beer gardens
- [D] In any fast food restaurant
- [E] At any function attended by minors

Requirements achieved	YES		NO	
Comments in support of decision				

SELF-ASSESSMENT

The learner must make use of the following self-evaluation checklist to rate himself against the learning outcomes of this particular training module in establishing the level of mastery of the information.

1. Not able to comply
2. Reasonable compliance (Not acceptable for final evaluation)
3. Able to comply fully

LEARNING OUTCOMES		1	2	3
1	Know the role of the security officer during The Liquor Act as contemplated in the Liquor Act			
2	Explain the functions of an inspector as contemplated in the Liquor Act			
3	Know the prohibitions to supply liquor to a minor			

Evidence Collector Signature

Date

Security Officer Signature

Date

LEARNING UNIT 7

The Explosives Act

LEARNING OUTCOMES

A learning credited with this unit will be able to:

1. Know the purpose of the Act
2. Explain the important legislative requirements pertaining to the Act

LEARNER ACTIVITY 1 (page 121)**What is the purpose of the Explosives Act?**

To consolidate the laws relating to the manufacture, storage, sale, transport, importation, exportation and the use of explosives.

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 2 (page 121)

What are the important legislative requirements that security officers should take note of?

- ♦ Prohibition of manufacture of unauthorized explosives except in small quantities for chemical experiment.
- ♦ Prohibition of storage or possession of unauthorized explosives save in
- ♦ accordance with section three.
- ♦ Prohibition of storage of authorized explosives except in licensed premises.

Requirements achieved	YES		NO	
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Comments in support of decision

SELF-ASSESSMENT

The learner must make use of the following self-evaluation checklist to rate himself against the learning outcomes of this particular training module in establishing the level of mastery of the information.

1. Not able to comply
2. Reasonable compliance (Not acceptable for final evaluation)
3. Able to comply fully

LEARNING OUTCOMES		1	2	3
1	Know the purpose of the Act			
2	Explain the important legislative requirements pertaining the Explosives Act			

Evidence Collector Signature

Date

Security Officer Signature

Date

LEARNING UNIT 8

Dangerous Weapons Act

LEARNING OUTCOMES

A learning credited with this unit will be able to:

1. Define the term “dangerous weapon”
2. List the items that are classified as dangerous weapons
3. List the items that are not dangerous weapons according to this Act

LEARNER ACTIVITY 1 (page 127)**PURPOSE OF THE DANGEROUS WEAPONS ACT****Explain in your own words what the purpose of this Act entails:**

To provide for certain prohibitions and restrictions in respect of the possession, manufacture, sale or supply of certain objects; to provide for the imposition of prescribed sentences where dangerous weapons or firearms have been used in the commission of offences involving violence; to repeal sections 10 and 10*bis* of the General Law Amendment Act, 1949; and to provide for incidental matters.

Requirements achieved	YES		NO	
Comments in support of decision				

LEARNER ACTIVITY 2 (page 127)

In your own words, give a definition for “dangerous weapon”:

Dangerous weapon' means any object, other than a firearm, which is likely to cause serious bodily injury if it were used to commit an assault;

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 3 (page 127)

In your own words, give a definition for “firearm”:

Firearm' means an arm as defined in section 1 of the Arms and Ammunition Act, 1969 (Act 75 of 1969);

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 4 (page 127)**PROHIBITIONS OF THE POSSESSION OF DANGEROUS WEAPONS,
FIREARMS AND CERTAIN OTHER OBJECTS**

Who, by law, may prohibit a person from being in possession of a dangerous weapon?

Any person who is in possession of any dangerous weapon, or of any object which so resembles a firearm that, under circumstances such as those under which such person is in possession thereof, it is likely to be mistaken for a real firearm, shall be guilty of an offence, unless he is able to prove that he at no time had any intention of using such weapon or object for any unlawful purpose, and shall on conviction be liable to a fine or to imprisonment for a period not exceeding two years.

The Minister may from time to time by notice in the *Gazette* and subject to such terms, conditions, restrictions, directions or exemptions as may be specified in such notice or as may be provided for therein, prohibit any person or any person belonging to any class of persons specified in such notice, from being in possession at any time or during any period so specified and either generally or at or in any place or area so specified or at a specified gathering or at any gathering belonging to any class specified in such notice, of any object belonging to a class, type, kind or category of object which, in the opinion of the Minister, is a dangerous weapon and which is specified in such notice.

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 5 (page 128)

If a person is caught with an object in his possession that is the replica of a firearm, can he be found guilty of an offence? Motivate your answer.

Any person who is in possession of any object, firearm or replica of a firearm in contravention of the provisions of any notice issued shall be guilty of an offence and liable on conviction to the penalties prescribed in subsection (1).

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 7 (128)**PENALTIES WHEN DANGEROUS WEAPONS OR FIREARMS ARE USED
IN THE COMMISSION OF OFFENCES INVOLVING VIOLENCE**

Can a person be sentenced to imprisonment when caught with a dangerous weapon? Motivate your answer.

Whenever any person above the age of eighteen years is convicted of an offence involving violence to any other person and it has been proved that he killed or injured such other person by using a dangerous weapon or a firearm, he or she shall, except when he or she is in terms of section 286 of the Criminal Procedure Act, 1977 (Act 51 of 1977), declared an habitual criminal, notwithstanding anything to the contrary in any law contained, be sentenced to imprisonment for a period of not less than two years and, if he or she is so convicted by a magistrate's court, not exceeding eight years: Provided that if the court is of the opinion that there are circumstances which justify the imposition of a lighter sentence than the punishment prescribed by this section, it shall enter those circumstances on the record of the proceedings and may thereupon impose such lighter sentence on the person so convicted: Provided further that in the case of a magistrate's court, such lighter sentence shall not exceed a fine of R40 000 or imprisonment for a period of two years.

Requirements achieved	YES		NO	
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Comments in support of decision

SELF-ASSESSMENT

The learner must make use of the following self-evaluation checklist to rate himself against the learning outcomes of this particular training module in establishing the level of mastery of the information.

1. Not able to comply
2. Reasonable compliance (Not acceptable for final evaluation)
3. Able to comply fully

LEARNING OUTCOMES		1	2	3
1	Define the term “dangerous weapon”			
2	List the items that are classified as dangerous weapons			
3	List the items that are not dangerous weapons according to this Act			

Evidence Collector Signature

Date

Security Officer Signature

Date

LEARNING UNIT 9

Firearms Control Act

LEARNING OUTCOMES

A learning credited with this unit will be able to:

1. Explain the criteria that a license applicant needs to adhere when he/she are transporting firearms according to the Firearms Control Act 60 of 2000
2. Explain the criteria of a transporters permit according to the Firearms Control Act 60 of 2000
3. Explain the criteria of a transporters permit according to the Firearms Control Act 60 of 2000
4. Explain the reason why a transporters permit will be cancelled

LEARNER ACTIVITY 1 (page 133)**Multiple choice questions. Choose one or more of the following:****STORAGE, TRANSPORT AND CARRYING OF FIREARMS AND AMMUNITION**

1. **SECTION 84 - No person may carry a firearm in a public place unless the firearm**

[A] Is carried in a holster or similar holder designed for same

[B] Is not bigger than a small sized handgun

[C] Is in a rucksack or similar holder

[D] Is the registered property of the carrier

[E] All of the above

Requirements achieved	YES	NO
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Comments in support of decision

LEARNER ACTIVITY 2 (page 133)

SECTION 86 - No person may transport any firearm or ammunition for reward without being in possession of a firearm transporter's permit. Who issues this permit and when may this permit be issued?

Firearm transporter's permit

SECTION 86. (1) No person may transport any firearm or ammunition for reward without being in possession of a firearm transporter's permit issued in terms of this Act.

- (2) A firearm transporter's permit may be issued to a person who is a fit and proper person to conduct business as a firearm transporter.
- (3) The Registrar may issue a firearm transporter's permit-
 - (a) on receipt of an application completed on the prescribed form and containing the prescribed information; and
 - (b) for such period as the Registrar may determine.

Requirements achieved	YES		NO	
Comments in support of decision				

LEARNER ACTIVITY 3 (page 134)

The holder of a permit issued in terms of this Act, must at the request of any police official, produce the following for inspection:

- ♦ any firearms or ammunition in his or her possession or under his or her control;
- ♦ his or her permit; and
- ♦ any register or electronic data that may be kept by him or her in terms of this Act.
- ♦ The Registrar may direct the holder of a permit issued in terms of this Chapter to keep and maintain registers containing such information as he or she may direct.
- ♦ The holder of a firearm transporter's permit must comply with any conditions imposed under section 85.

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 4(page 134)**When is the Registrar entitled to cancel a firearm transport's permit?**

SECTION 88. (1) The Registrar may, by written notice, cancel a firearm transporter's permit if the permit holder:

- (a) no longer qualifies to hold the permit; or
 - (b) has contravened or failed to comply with any provision of this Act or any condition specified in the permit.
- (2) The former holder of a permit must dispose of his or her cargo of firearms and ammunition in accordance with the directions of the Registrar.

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 5 (page 134)

Who keeps record of prescribed information in respect of all firearm transporter's permits issued in terms of this Act?

SECTION 89. The Office of the Central Firearms Register must keep a record of prescribed information in respect of all firearm transporter's permits issued in terms of this Chapter.

Requirements achieved	YES		NO	
Comments in support of decision				

SELF-ASSESSMENT

The learner must make use of the following self-evaluation checklist to rate himself against the learning outcomes of this particular training module in establishing the level of mastery of the information.

1. Not able to comply
2. Reasonable compliance (Not acceptable for final evaluation)
3. Able to comply fully

LEARNING OUTCOMES		1	2	3
1	Explain the criteria that a license application needs to adhere when he/she are transporting firearms according to the Firearms Control Act 60 of 2000			
2	Explain the criteria how one/security officers should carry his/her firearms at a public gathering according to the Firearms Control Act 60 of 2000			
3	Explain the criteria of a transporters permit according to the Firearms Control Act 60 of 2000			
4	Explain the reason why a transporters permit will be cancelled			

Evidence Collector Signature

Date

Security Officer Signature

Date

LEARNING UNIT 10

Trespassing

LEARNING OUTCOMES

A learning credited with this unit will be able to:

1. Interpret the definition of trespass according to the Trespass Act, Act 6 of 1959 within its rightful context and application by a security officer
2. Explain what is meant by the term “the lawful owner” as used in the Trespass Act, Act 6 of 1959
3. Discuss the role of the security officer in securing property in terms of the Trespass Act, Act 6 of 1959

LEARNER ACTIVITY 1 (page 140)**Multiple choice questions. Choose one or more of the following:****INTERPRETATION OF THE DEFINITION****1. A person can only legally enter a building when the following has taken place:**

- [A] He must have permission to enter the building
[B] He must be a family member of the owner of the building
[C] He must be in the building during working hours
[D] He must be a friend of the security officer
[E] All of the above

Requirements achieved	YES	NO
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Comments in support of decision

LEARNER ACTIVITY 2 (page 140)

In your own words, give a definition for “public premises”

'public premises' means any building, structure, hall, room, office, convenience, land, enclosure or water surface which is the property of, or is occupied or used by, or is under the control of, the State or a statutory body, and to which a member of the public has a right of access, or is usually admitted or to which he may be admitted;

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 3 (page 140)

In your own words, give a definition for “public vehicle”

'public vehicle' means any vehicle, conveyance, ship, boat, craft or aircraft which is the property or under the control of the State or a statutory body, and which is used for the transport, for profit or otherwise, of members of the public;

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 4 (page 140)

In your own words, give a definition for “trespassing”

Trespassing: Section 1(1) of the Trespass Act 6 of 1959 provides that any person who without the permission:

(a) of the lawful occupier of any land or building or part of a building ; or

(b) of the owner or person in charge of any land or any building or part of a building that is not lawfully occupied by any person,

enters or is upon such land or enters or is in such building or part of a building, shall be guilty of an offence unless he has lawful reason to enter or be upon such land or enter or be in such building or part of a building.

Requirements achieved	YES		NO	
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Comments in support of decision

SELF-ASSESSMENT

The learner must make use of the following self-evaluation checklist to rate himself against the learning outcomes of this particular training module in establishing the level of mastery of the information.

1. Not able to comply
2. Reasonable compliance (Not acceptable for final evaluation)
3. Able to comply fully

LEARNING OUTCOMES		1	2	3
1	Interpret the definition of trespass according to the Trespass Act, Act 6 of 1959 within its rightful context and application by a security officer			
2	Explain what is meant by the term “the lawful owner” as used in the Trespass Act, Act 6 of 1959			
3	Discuss the role of the security officer in securing property in terms of the Trespass Act, Act 6 of 1959			

Evidence Collector Signature

Date

Security Officer Signature

Date

LEARNING UNIT 11

Searching

LEARNING OUTCOMES

A learning credited with this unit will be able to:

1. Explain how to apply the correct procedures according to the Criminal Procedures Act 51 of 1977 with regard to the searching of persons and premises and these seizure of articles

LEARNER ACTIVITY 1**Multiple choice questions. Choose one or more of the following:**

1. The State may, in accordance with the provisions of this Act, seize the following:
 - [A] Articles which was assumed to be used in a criminal offence
 - [B] Any article which may be used as evidence in a court case
 - [C] Any article which was used in the commission of an offence
 - [D] Any article belonging to the State
 - [E] All of the above

2. Who is allowed inside the premises whilst the police are searching same?
 - [A] Nobody is allowed except the police or security official
 - [B] The owner of the premises
 - [C] The person in charge of the premises, even if he isn't the owner of same
 - [D] Friends of the owner of the premises
 - [E] All of the above

3. Premises may be searched when it is suspected that the following might be on the premises:
 - [A] Intoxicating liquor
 - [B] Dependence-producing drugs
 - [C] Arms and ammunition
 - [D] Explosives
 - [E] All of the above

4. Who is allowed to conduct strip searches on female persons?
 - [A] A female person may not be strip searched
 - [B] Any security personnel
 - [C] Any police official
 - [D] Another female police official
 - [E] All of the above

5. After a person has been arrested, who may search such person?
 - [A] The Security official
 - [B] The Police

Requirements achieved	YES		NO	
Comments in support of decision				

SELF-ASSESSMENT

The learner must make use of the following self-evaluation checklist to rate himself against the learning outcomes of this particular training module in establishing the level of mastery of the information.

1. Not able to comply
2. Reasonable compliance (Not acceptable for final evaluation)
3. Able to comply fully

LEARNING OUTCOMES		1	2	3
1	Explain how to apply the correct procedures according to the Criminal Procedures Act 51 of 1977 with regard to the searching of persons and premises and these seizure of articles			

Evidence Collector Signature

Date

Security Officer Signature

Date

LEARNING UNIT 12

The Public Gatherings Act

LEARNING OUTCOMES

A learning credited with this unit will be able to:

1. Know the role of the Security Officer during public gatherings as contemplated in this Act
2. Explain the importance of the Public Gatherings Act during the execution of the security officer's duty

LEARNER ACTIVITY 1 (page 155)**What is the PURPOSE OF THE ACT?**

To regulate the holding of public gatherings and demonstrations at certain places; and to provide for matters connected therewith.

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 2 (page 155)

When an organization seeks to hold a protest “march” or gathering, a notification form must be filling terms of Section 321 of the ct, providing the following information:

- ♦ the name and address of the convenor(s), telephone numbers and address;
- ♦ the name of the organization requesting the gathering- if the gathering is not called by an organization- the convenor must make a statement that it is called by himself;
- ♦ the purpose of the gathering;
- ♦ the date, time and duration of the gathering;
- ♦ the place where the gathering will commence;
- ♦ the number of participants expected to attend the gathering;
- ♦ the proposed number of the marshals;
- ♦ if the gathering is going to take the form of a procession- where it will commence- and the routes to be taken;
- ♦ where a memorandum is going to be handed over- the organization or individual accepting the memorandum and the place where such a memorandum or petition will be accepted;
- ♦ a letter confirming that the organization or individual will accept a memorandum and the mode of transport to be used to deliver the participants in the gathering.
- ♦ After the submission of a notice- and after consultation with a member of SAPS the responsible officer may decide to call or not to call a consultation or meeting in terms of section 4 of the RGA.24 Section 4 of the RGA provides for the holding of a meeting after the submission of section 3 notice to discuss the contents of the notice and whether amendments should be effected to the proposed facts so as to meet the objectives of the RGA. In this meeting- parties must agree on

Requirements achieved	YES		NO	
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Comments in support of decision

SELF-ASSESSMENT

The learner must make use of the following self-evaluation checklist to rate himself against the learning outcomes of this particular training module in establishing the level of mastery of the information.

1. Not able to comply
2. Reasonable compliance (Not acceptable for final evaluation)
3. Able to comply fully

LEARNING OUTCOMES		1	2	3
1	Know the role of the security officer during public gathering as contemplated in the Public Gatherings Act of 1993			
2	Explain the importance of the Public Gatherings Act during the execution of the security officers duty			

Evidence Collector Signature

Date

Security Officer Signature

Date

LEARNING UNIT 13

Liabilities

LEARNING OUTCOMES

A learning credited with this unit will be able to:

1. Explain what is meant by the term 'vicarious liability' by using examples of practical acts and deeds, which involve for instance the use of a firearm by a security officer
2. Explain what is meant by the term 'civil liability' by using examples of practical acts and deeds, which involve for instance the use of a firearm by a security officer

LEARNER ACTIVITY 1 (page 161)**VICARIOUS LIABILITY**

Explain what is meant by the term “vicarious liability”

Vicarious liability is a creation of statute, because in common law a person will only be held liable for his or her own conduct. The general rule is that a person is not liable for the crime of another unless he/she authorizes or procured its commission or took part in it.

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 2 (page 164)**Explain what is meant by the term “civil liability”**

Civil liability gives a person rights to obtain redress from another person e.g. the ability to sue for damages for personal injury. The burden of proof is "the balance of probability" which is much lower than for criminal matters. If there has been a relevant criminal conviction in a particular matter, then the burden of proof in any related civil action is reversed, so that the defendant has to prove he is not liable.

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 3 (page 163)**When will members of a partnership be held liable for the actions of the other?**

- ♦ The nature of the relationship between the two parties is very important. Where the person who committed the act does not have a relationship as specified in the legislation (e.g. that of an employee or agent to the client), his/her conduct will not be attributed to that of the employer/client.
- ♦ In addition to the **relationship between the parties** it must be clear that the perpetrator was **acting within the scope of his/her employment or mandate**. It must be shown that the person was acting in the course of his/her employment or within the scope of the authority conferred on him/her.
- ♦ The unlawful conduct must have been committed in **circumstances that make it legitimate to attribute the act of the employee to the employer**. The fact that the employer or client may have instructed the employee not to engage in such activities that resulted in the unlawful conduct is not relevant.
- ♦ Another approach is to ask **whether the employer/client derived any benefit** from the activities of the employee or the agent. If the answer to this question is YES, then the employer/client would be held liable for the conduct of his/her/its employee.

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 4(page 162)**What does the term “liability” refer to?**

This form of liability occurs where a person other than the one who is held responsible performed the conduct resulting in a civil liability. For purposes of liability, the person on whose behalf the perpetrator was acting is held responsible as if he/she were responsible for the conduct.

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 5 (page 163)

State the relationship between parties that will cause one person to be held liable for the actions of another

- ♦ The nature of the relationship between the two parties is very important. Where the person who committed the act does not have a relationship as specified in the legislation (e.g. that of an employee or agent to the client), his/her conduct will not be attributed to that of the employer/client.

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 6

Will a Security Officer be held liable in his personal capacity for an act that caused damage and injury to another person or will the security service provider be held liable? Motivate your answer.

Security service provider

Requirements achieved	YES		NO	
Comments in support of decision				

SELF-ASSESSMENT

The learner must make use of the following self-evaluation checklist to rate himself against the learning outcomes of this particular training module in establishing the level of mastery of the information.

1. Not able to comply
2. Reasonable compliance (Not acceptable for final evaluation)
3. Able to comply fully

LEARNING OUTCOMES		1	2	3
1	Explain what is meant by the term 'vicarious liability' by using examples of practical acts and deeds, which involve for instance the use of a firearm by a security officer			
2	Explain what is meant by the term 'civil liability' by using examples of practical acts and deeds, which involve for instance the use of a firearm by a security officer			

Evidence Collector Signature

Date

Security Officer Signature

Date